

Tentative Rulings for August 18, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG05480	<i>JJD Management Associates v. Halajian</i> is continued to Tuesday, September 15, 2026, 3:30 p.m. in Department 403.
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(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

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Tentative Ruling

Re: ***Hedrington v. Woolman***
Superior Court Case No. 25CECG01717

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By Plaintiff Orlonzo Hedrington to Vacate Judgment

Tentative Ruling:

To deny.

Explanation:

On March 19, 2026, plaintiff filed a Notice of Motion and Motion to Vacate Fraud Judgment. Plaintiff seeks to void a judgment in Fresno Superior Court Case Number 22CECL00440. Notably, there is no proof of service as to this motion. Additionally, this motion seeks relief for a judgment obtained in a different matter. Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 17, 2026.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Singh, et al. v. Mercedes-Benz USA, LLC***
Superior Court Case No. 24CECG01987

Hearing Date: August 18, 2026 (Dept. 403)

Motion: by Plaintiffs for Attorney Fees

Tentative Ruling:

To grant the motion for an award for attorney fees and award \$16,615.50 in favor of plaintiffs Amrik Singh and Jobanpreet Kaur.

Explanation:

Plaintiffs move for an award of attorney fees as the prevailing buyer under Civil Code section 1794, subdivision (d). The executed Offer to Compromise pursuant to Code of Civil Procedure section 998 authorizes plaintiffs to seek fees and costs from defendant by noticed motion in the event the parties are unable to resolve attorney fees and costs. The Offer to Compromise was executed on March 27, 2025. (Hom Decl., Ex. B.) The court finds that plaintiffs sufficiently state a basis upon which to seek an award of fees and costs.

Timely Motion

Defendant opposes the motion on the basis that it is not timely under California Rules of Court, rule 3.1702(b)(1). Rule 3.1702(b)(1) states in pertinent part, "[a] notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court ... must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case" (Cal. Rules of Court, rule 3.1702(b)(1).) The time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.*, rule 8.104(a)(1).) A voluntary dismissal, although not appealable, is effectively a judgment and the time for filing a motion for attorney fees commences upon entry of judgment. (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) Thus, the time to bring a motion for attorney fees commences upon the entry of dismissal of the case at bench. Since the event triggering the time limit to bring a motion for fees, i.e., the dismissal of the case, has not yet occurred, the motion is timely.

Defendant relies on a recent decision from the Fourth District Court of Appeal, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 (*Hatlevig*), to contend that the motion is untimely. Defendant argues that the time for filing a motion for fees commences on April 28, 2025, the date plaintiffs filed their notice of conditional settlement. For reasons outlined below, the court disagrees.

In *Hatlevig*, the parties to a Song Beverly action reached a settlement and advised the court of the same at a trial readiness conference. (*Id.*, at p. 646.) The court ordered a dismissal filed within 45 days. (*Ibid.*) Following the passage of 45 days the court generated a “Notice of Dismissal by Court” giving notice to the parties that the case would be deemed dismissed without prejudice on August 15, 2023 unless a judgment or dismissal was filed or a party appeared ex parte to show good cause why the case should not be dismissed. (*Id.*, at pp. 646-647.) Neither event occurred, but the trial court did not dismiss the case until June 17, 2024, after plaintiff filed a motion for attorney fees and served the motion on April 2, 2024. (*Id.* at pp. 647-650.) General Motors, LLC opposed the motion as untimely as it had not been served within 180 days of the date of settlement pursuant to California Rules of Court, rule 3.1702(b)(1). (*Ibid.*) The court rejected plaintiff’s argument that there had been no dismissal and the deadline to file the fee motion was never triggered. (*Ibid.*) The Fourth District affirmed the order denying the motion for attorney fees as untimely based on the voluntary dismissal of the case entered on August 15, 2023. (*Id.* at p. 650.)

Here, plaintiffs filed a notice of conditional settlement on April 28, 2025, indicating that a request for dismissal would be filed by July 28, 2025. (See the Apr. 28, 2025, Ntc of Stlmt.) This court set the notice of dismissal hearing on September 30, 2025. On September 29, 2025, plaintiffs’ counsel filed a declaration indicating good cause to continue the dismissal hearing. (Sept. 29, 2025 Serrano Decl., ¶¶ 5-6.) This court continued the matter to February 19, 2026. (See the Sept. 30, 2025 Order.) Plaintiffs filed the instant fees motion on February 18, 2026.

An important distinction to *Hatlevig* is that there was never a dismissal in the instant proceedings. Nor did the court ever indicate its intent to dismiss the case. By referencing the notice of dismissal as follows: “[T]his case was dismissed on August 15, 2023, since no cause was shown why it should not be...” (*Hatlevig*, *supra*, at p. 650.), the Fourth District Court of Appeal “conclude[d] the [trial] court entered the order to fulfill the mandatory duty to dismiss settled cases ... and intended it as a nunc pro tunc correction of the failure to file a dismissal order on August 15, 2023.” (*Ibid.*) Furthermore, unlike in *Hatlevig*, this court was not obligated to dismiss the case, since plaintiffs provided good cause not to do so. Despite defendant’s arguments that plaintiffs’ explanation did not constitute good cause, this court was satisfied by plaintiffs’ declaration and continued the dismissal hearings as opposed to simply dismissing the case. Therefore, the timeliness analysis in *Hatlevig* does not apply in the instant proceeding and the motion is timely.

Retainer Agreement and Additional Authentication of Timekeeping Records

Defendant asks the court to compel plaintiffs’ counsel to produce its fee agreement and to order additional authentication of plaintiff’s counsel’s timekeeping records. The court finds no need to do so, since the contingency nature of plaintiffs’ representation and timekeeping records are supported by counsel’s declaration under penalty of perjury. (Feb. 18, 2026, Jacobson Decl., ¶¶ 69, 71, 72 and Ex. 28 thereto.) Furthermore, mere allegations in a separate lawsuit carry no weight in this case.

Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid.*) An award of costs must be "reasonably necessary to the conduct of the litigation" and per (c)(3), shall be "reasonable" in amount. (Code Civ. Proc. § 1033.5(c)(2).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Counsel for plaintiffs seek to set the lodestar at \$17,283.50, excluding an additional \$4,000 sought in connection with anticipated time for the reply and hearing for the motion at bench. With the reply, counsel submits a supplemental declaration submitting the actual hours spent reviewing the opposition and drafting the reply and revising the related fees to \$2,425.50 for 4.9 hours of work. With the reply, counsel further revises the anticipated attorney fees for attending the hearing to \$990. Accordingly, excluding the anticipated fees, counsel submits a total of 48.4 hours of billed time across five timekeepers. Counsel primarily practice in consumer law claims, such as the present action. (Feb. 18, 2026, Jacobson Decl., ¶ 4.) Counsel submits hourly rate ranging from \$395 per hour for associate attorney Stephanie Hovhannisyan to \$550 for senior partner Kevin Jacobson. These rates are negligibly high for the Fresno area.

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1133.) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) Plaintiff has made no showing that local counsel practicing "Lemon Law" and Song-Beverly consumer litigation are not available. Defendant asks the court to award fee based on the 2023 Real Rate Report provided, but fails to provide any authority suggesting the use of this report is mandatory. The court intends to award fees based on local rates.

Having reviewed the qualifications of each of the timekeepers, the court finds the reasonable value of services as follows:

\$550 per hour for Mr. Jacobson, managing partner of the firm,
\$500 for Ms. Hinton, admitted to the California Bar in 2013,
\$400 for Mr. Chipman, admitted to the California Bar in 2019,
\$325 for Mr. Serrano, admitted to the California Bar in 2023, and
\$250 for Ms. Hovhannisyan, admitted to the California Bar in 2025.

The opposition challenges the time spent on this case as excessive, administrative, unintelligible, and/or unreasonably incurred. Regarding defendant's challenge to plaintiff's oppositions to motions to compel on March 19, 2025, the court judicially notices its own docket and agrees that the two oppositions filed on March 20, 2025 are nearly identical. Therefore, the time is discounted by 1.2 hours.

Defendant challenges the time spent on preparing declarations providing good cause for not dismissing the case as unreasonable, because these declarations would not be necessary if plaintiff had filed a timely motion for fees. Since no explanation is provided for why this motion could not be brought sooner, this time is discounted by 0.5 hours.

While the court acknowledges defendant's argument that counsel's motion for fees is likely to be largely based on existing templates, defendant has provided no evidence for the court to evaluate the merit in this contention. Accordingly, the time for this challenge is not reduced.

Lastly, the court need not address the challenge to anticipated fees, since counsel provides the necessary information on reply.

After the discounted hours and rate reductions, the lodestar is reduced to \$15,105.

Multiplier

Plaintiffs seek the imposition of a multiplier of 1.25. As stated by the California Supreme Court regarding lodestar multipliers, sometimes referred to as fee enhancements:

...the trial court is *not required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*. We emphasize that when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar. The factor

of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and experienced attorney will command a higher hourly rate. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr. 145.) Indeed, the “ ‘reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case.’ ” (*Ibid.*) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139 [emphasis original].)

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Id.* at p. 1132, citing *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 49.)

Here, plaintiffs submit that counsel took the matter on contingency, and obtained an excellent result. The court acknowledges the contingent risk taken by counsel; however, the settlement amounting to the repurchase of the vehicle appears to be an average result. Counsel does not suggest that time dedicated to this case precluded other employment. Moreover, defendant contends that plaintiffs have unduly delayed in filing a motion for fees. The court applies a multiplier of 1.1 reflecting the contingent nature of the fee award.

Therefore, the motion for an award of attorney fees is granted in the amount of \$16,615.50.¹ In the event a hearing is required, further fees may be awarded.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 17, 2026.
(Judge's initials) (Date)

¹ Costs are not at issue in this motion.

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Tentative Ruling

Re: ***LS Power Grid California LLC v. Olivia Chaney, Surviving Trustee of the Chaney Family Trust, Established March 9, 1996 et al.***
Superior Court Case No. 26CECG01248

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By plaintiff LS Power Grid California, LLC for Order of Prejudgment Possession

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 1255.410, subd. (a).)

Explanation:

Plaintiff LS Power Grid California, LLC ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410.

Code of Civil Procedure section 1255.410, subdivision (a), requires that a motion under the statute "shall describe the property of which the plaintiff is seeking to take possession, which description may be by reference to the complaint, and shall state the date after which the plaintiff is seeking to take possession of the property."

Plaintiff has described the property Plaintiff is seeking an easement on. (Bratcher Decl., Exh. 1.) However, Plaintiff's motion does not state the date after which Plaintiff is seeking to take possession of the property as required by Code of Civil Procedure section 1255.410, subdivision (a). Accordingly, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 17, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Hernandez v. Norwood***
Superior Court Case No. 24CECG05367

Hearing Date: August 18, 2026 (Dept. 403)

Motion: By Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant plaintiff Monica Hernandez's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file their first amended complaint within 10 days of the date of service of this order.

Explanation:

“ ‘Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.’ [Citation.] ‘In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.’ [Citation.]” (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

“While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

Plaintiff Monica Hernandez (“Plaintiff”) moves the court for an order granting her leave to file a first amended complaint to amend one cause of action and add five causes of action. Plaintiff seeks to include causes of action for sick leave retaliation, Kin Care, FEHA retaliation, breach of written contract, and breach of implied covenant of good faith and fair dealing. Plaintiff does not provide the cause of the delay in making the instant request. However, denial of the request would likely prevent Plaintiff of her right to assert meritorious causes of action.

Defendant opposes the request on the basis of prejudice caused by the delay in amending the complaint after substantial discovery has been completed. Defendant argues that the added causes of action goes beyond the facts that arose from the original Complaint, which necessitates additional discovery efforts. Defendant asserts that claims related to breach of contract, Kin Care, and retaliation would necessitate further investigation of his own records and recollections of the event. However, a trial date has not been set and further discovery may be conducted. As such, Defendant has failed to show that he would be prejudiced by the filing of the proposed First Amended Complaint. Accordingly, the motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 17, 2026.
(Judge's initials) (Date)